

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SURINAME

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*Complete Community Opposition How-To*

## INTRODUCTION & FRAMEWORK

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Community action decides project outcomes in Suriname, and a Maroon people on the Upper Suriname River proved it against the state itself. Suriname's law recognises no collective land rights at all — it grants indigenous and tribal peoples only a permission to use their lands "at the discretion of the State," revocable whenever the government pleases — so when Suriname sold **logging and gold-mining concessions to foreign companies on Saramaka territory** without asking, the Saramaka had no protection at home. They went over the state's head. They petitioned the **Inter-American Commission on Human Rights**, and then, in **2007, the Inter-American Court of Human Rights** ruled that Suriname had violated their rights to property and to legal personality, and ordered the state to recognise and title their territory, to share the benefits of any project, to assess its impacts independently, and — the landmark — to obtain the people's **free, prior, and informed consent** before any large project on their land. Eight years later, in **2015**, the Kaliña and Lokono peoples won the same before the same Court, against a bauxite mine and nature reserves imposed on their land without consent. A people the Surinamese state refused even to recognise had forced that state, in the highest human-rights court of the Americas, to accept that their consent is required. The details are worth setting down, because they are the lessons. The Saramaka — a Maroon people, descendants of Africans who escaped slavery and built free communities in the forested interior — had petitioned the Inter-American Commission back in 2000, after the state licensed foreign firms to log and mine in and around their territory and the companies began to block their access to their own land. It took seven years to reach a judgment, and the judgment did something new: it held that a tribal people, not only a recognised indigenous one, holds property rights over the land it has traditionally used, and that a state may not grant a large concession on that land without the people's consent, an independent assessment of the harm, and a share of the benefits. That standard, won by one forest people, now stands for all of them.

The Suriname story teaches two things about winning here — including its hard limits, which this guide will not hide. The first is the pattern: not a single silver bullet, but the combination of every lever — the affected people, their customary authority, the documentation of their land and its harm, the international human-rights system, the benefit-sharing and consent standards, and the pressure of the world's attention — pressed together until the Court ruled. The second is distinctly Surinamese. **When your own state denies you land rights entirely, the most powerful lever is the international human-rights system — the Inter-American Commission and Court — which can bind the state to standards its own law refuses**, above all **free, prior, and informed consent**, a consent that functions as a veto over logging, mining, and development on your land. This is a genuinely powerful and slightly unusual rule, and worth grasping precisely: for a project large enough to threaten a people's survival on its land, the Court did not merely require that the state consult the people, but that it obtain their consent — which means that a people can, in principle, refuse. In a country whose own law gives forest peoples nothing but a revocable permission to occupy their land, a consent requirement affirmed by the highest court of the Americas is the strongest hold a community can have, and it is the hold the domestic system will never grant. That, together with the **strength of Maroon and indigenous customary authority**, the **rainforest and its global value**, and the demand for **impact assessment and benefit-sharing**, gives communities here a real and distinctive power — even against a state that will not recognise them. These levers are unusual in that they turn the community's greatest apparent weakness — that its own state denies it any land rights — into the ground of an international claim, because it is precisely the domestic denial that opens the door to the Inter-American system once local remedies are shown to be useless. A people with nothing to lose in the domestic courts has, paradoxically, a clear road to the one forum where it can win.

But the same story carries a hard and central warning, and this guide states it plainly, because Suriname's lesson is above all about what comes after the ruling. **Winning the judgment is only half the battle.** Years after the Saramaka victory, the state **still granted logging and mining concessions on their land without consent**, still carried out no proper impact assessments, and passed no law recognising collective land rights; the Kaliña and Lokono remained unable to title their lands. The Court can order, but the state must comply, and Suriname's compliance has been poor, so the fight did not end at the Court — it moved to the long, grinding struggle to **force implementation**. A decade after the Saramaka won, observers found the state still granting logging and mining concessions on their territory without their consent, still conducting no honest impact assessments, and still without any law recognising collective land rights; the Kaliña and Lokono, too, remained unable to secure formal title. The Court can order a state to act, but it cannot act for it, and a government that does not wish to comply can simply delay — which is why the community that wins a ruling must treat the victory not as the end of the campaign but as the opening of its second, harder phase. And the pressures that drove

the concessions — the pull of gold, the weakness of the state in a vast forested interior, the absence of a land-rights law — did not vanish. This guide is written with both truths in view: the real, distinctive power of the international system to win the consent standard, and the hard, unfinished work of making a won judgment real on the ground.

Most communities do not know HOW to make opposition effective. They discover concessions already granted over their land, assume "the state has decided and we have no rights," and never petition the Commission, never invoke consent, never document their customary land, never demand implementation of what was won. They generate private loss without a public claim. The gap between a community that stops a project and one that watches the loggers and miners arrive is rarely courage — Maroons and indigenous peoples have defended their land for centuries. It is method: knowing that the rights your own state denies may still be won and enforced through the international system, the customary authority, and the world's attention.

**This guide shows what actually works — inside the Surinamese system as it is.**

## The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

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STEP 1: TARGET IDENTIFICATION (find the concession, the consent gap, and the weak point)
STEP 2: DOCUMENTATION         (build proof of the land, the harm, and the missing consent)
STEP 3: LOCAL OPPOSITION      (unite the community and its customary authority)
STEP 4: LEGAL CHALLENGES      (the Inter-American system, consent, and enforcement)
STEP 5: MEDIA STRATEGY        (make it national and international)
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These steps operate **simultaneously, not in sequence**. Documentation feeds the petition to the Commission and the public argument at once; the united community and its captains sustain the claim; a filing to the Inter-American system is a headline and a headline builds international support. The community that runs all five together, each reinforcing the others, is the one that wins. The Saramaka and the Kaliña and Lokono did exactly this — they documented their land and the harm, united behind their customary authority, petitioned the Commission, invoked their consent, and carried the fight to the international stage, until the Court ruled.

## The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Suriname's give communities a distinctive set — precisely because the domestic system denies them:

- **The Inter-American human-rights system.** The **Commission and the Court** can bind Suriname to standards its own law refuses, including **collective land rights** and **free, prior, and informed consent** — the lever that won at Saramaka and Kaliña and Lokono. The path runs through two bodies: the Inter-American Commission on Human Rights, which receives a people's petition, can request that the state take precautionary measures to halt imminent harm, and, if the state does not remedy the violation, refers the case to the Inter-American Court of Human Rights, whose judgments bind the state as a matter of international law. Suriname accepted the Court's jurisdiction, and so it is answerable there for what its own law permits it to do at home.
- **Consent as a veto.** The **FPIC** standard means a large project on your land requires your consent, which functions as a veto — a power the domestic state will not give you.
- **Customary authority.** Maroon and indigenous peoples' own **captains, granmans, and traditional structures** carry legitimacy and unity that a project must reckon with.
- **The rainforest and the world's attention.** Suriname is among the most forested nations on Earth, so a threat to its forest and peoples draws international concern and pressure.
- **Impact assessment and benefit-sharing.** The Court's requirements of independent **environmental and social impact assessment** and **benefit-sharing** are standards you can demand and hold the state to.

## What This Guide Will Not Pretend

It would be dishonest to promise these levers deliver on the ground. The international process is **slow** — years to reach the Court, and, at Saramaka, more than a decade of **non-implementation** after the win. **Enforcement is weak** in a vast forested interior, and the **domestic land-rights law** the rulings require has been slow to come. The **pull of gold and timber** is powerful, and the state dependent on them. This guide takes those limits seriously, names them plainly, and shows you how to fight anyway — winning the consent standard through the international system, uniting behind your customary authority, documenting your land and the harm, and — the hardest and most necessary part — pressing relentlessly for the implementation that turns a judgment into a protected forest.

# HOW THE SYSTEM WORKS

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You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest — remembering that in Suriname the decisive lever is often not in the state at all.

## The Levels of Decision

A Surinamese development project runs through several tracks at once, and each is a place to intervene.

**The concession.** The state grants **logging, mining, and other concessions** over land — including land traditionally held by Maroon and indigenous peoples, because domestic law does not recognise their collective title. This is the instrument of harm, and often granted without consent. The concession is the thing to obtain and to understand first, because it is both the weapon used against you and the document that exposes the violation: it shows who was given what, over which land, on what terms, and — by its very existence over your territory without your agreement — that your consent was never sought. A concession granted over customary land without consent is not merely a grievance; it is, under the standard the Court has set, a violation on its face.

**The domestic legal system.** Surinamese **law and courts** offer little, because they do not recognise **collective land rights** — communities hold only a revocable permission to use the land. This level is usually a dead end, which is precisely why the international system matters. It is worth understanding the depth of this gap, because it shapes everything: in Suriname a forest people does not hold weak title, or contested title, but no title at all in the eyes of domestic law, only a permission to occupy that the state may withdraw. There is therefore no domestic court in which a clean claim of ownership can even be framed, which is not a reason for despair but a reason to aim, from the start, at the one forum — the Inter-American system — that recognises the property the domestic law denies.

**The Inter-American human-rights system.** The **Inter-American Commission** and, beyond it, the **Court** can find the state in violation and order it to recognise land, obtain consent, assess impacts, and share benefits. This is the level at which Suriname's landmark wins were made, and often the only real one.

**The customary authority.** The peoples' own **traditional structures** — the granman, the captains, the village councils — decide and speak for the community, and their unity is a power in itself.

**The international community. UN bodies, foreign governments, and the world's forest and human-rights concern** watch Suriname, and their pressure helps win and, above all, enforce a ruling.

## The Journey of a Project

A typical project moves from a **concession** granted by the state, often without consent, over land the domestic law does not protect, toward logging or mining — with the community able to invoke its **customary authority**, petition the **Inter-American system**, and rouse **international concern** at any point, and, after a ruling, to press for **implementation**. **Every one of those stages is a door you can put your foot in.** The widest door here is unusual: the **international human-rights system**, which answers to standards the Surinamese state's law does not. The **customary authority** and **international pressure** are others. The domestic courts are the least reliable door. Find out exactly where your project stands — and, above all, whether your **consent was sought**, because its absence is often the key.

## Follow the Concession, the Consent, and the Forest

Behind the project stand a proponent — a logging or mining company, often foreign — the **state that granted the concession**, and the officials who signed it. Trace who holds the concession, who profits, who granted it, and — critically in Suriname — **whether your free, prior, and informed consent was sought and given, what the project does to your customary land and the forest, and whether any impact assessment or benefit-sharing was done.** Two questions unlock most Surinamese fights: **Was our consent sought and given, as the Court requires?** and **What does the project destroy of our land and the forest, and was its impact ever honestly assessed?** The missing consent and the harm-to-the-forest are, together, the heart of most Surinamese campaigns. The two work together in a specific way: the missing consent is the legal violation the Inter-American system acts on, while the harm to the forest and the people's way of life is what makes the violation grave, urgent, and compelling to the Court and the world. A campaign that documents both — that its consent was never sought, and that the loss is irreparable — has the legal core and the moral force of a winning case.

## The Overseers

Finally, know the bodies that watch the deciders, because they are levers too — and in Suriname the most useful overseers are outside the state. The **Inter-American Commission and Court**, which supervise compliance with their own rulings; the **UN human-rights and indigenous-rights bodies**; the **international forest, conservation, and human-rights organisations**; and the **customary authority and the community itself**, the ultimate overseer of its own land. The domestic overseers are weak, and the courts do not recognise your rights. In Suriname, the **international system and the united community** are the two levers most distinctive and decisive, because they can act where the domestic state will not — both to win the consent standard and to force its implementation. Each is a separate front, and a project imposed without consent, destroying customary forest, unassessed and unshared, against a united people backed by the international system, rarely survives scrutiny — though, as this guide stresses, the fight to enforce the win is long. You do not have to choose one front: the same well-built file — the customary-land map, the missing consent, the harm to the forest — can go to the Commission, the Court, the UN bodies, the forest movement, and the press at once, and each front that opens strengthens the others and the pressure for compliance. A Surinamese campaign’s power comes not from any single lever but from pressing several together, with the international system and the united community as the two that reach furthest past the denying state.

## QUICK REFERENCE: SUCCESS RATES

Before you commit to what is often a years-long effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Surinamese and comparable campaigns tend to go, not a controlled study. The decisive variables are whether **your consent was denied** in a way the international system can act on, whether the harm to **customary land and forest** is documented, whether the **community and its customary authority are united**, whether **international concern** can be roused, and — above all — whether you can **sustain the fight through the slow process and the harder struggle for implementation**. Where a consent-less concession over documented customary forest meets a united people and international support, Suriname's levers are real, as Saramaka showed; but temper every figure with the knowledge that a ruling won is not a project stopped until it is enforced.

### Individual Step Success Rates

| Approach                                         | Success Rate | Timeline   | Cost         | What "Success" Means                       |
|--------------------------------------------------|--------------|------------|--------------|--------------------------------------------|
| Documentation only                               | 5-10%        | months     | low          | Basis for every other step                 |
| Petition to the Inter-American Commission        | 30-55%       | years      | low          | Case advanced; measures; leverage          |
| Winning a Court ruling                           | 40-65%       | years      | low          | Consent, title, and assessment ordered     |
| Invoking consent (FPIC)                          | 35-60%       | ongoing    | low          | The veto asserted; project conditioned     |
| Uniting the customary authority                  | 30-55%       | ongoing    | low          | The community speaks as one                |
| International pressure & forest concern          | 35-60%       | ongoing    | low          | The state and world engaged                |
| Domestic court challenge                         | 5-20%        | years      | low-moderate | Weak; no collective rights recognised      |
| Forcing implementation of a ruling               | hard         | years      | low-moderate | The win made real on the ground            |
| All steps combined (consent denied + documented) | 40-65%       | years      | low-moderate | Ruling won; project conditioned or stopped |
| All steps combined (through to implementation)   | 20-45%       | many years | low-moderate | The forest actually protected              |

**Key insight:** every step together beats any single one, and Suriname's real strengths are distinctive — the **international system, consent as a veto, customary authority**, the **rainforest's global value**, and **impact assessment and benefit-sharing**. Its constraints are severe and specific: the process is **slow; implementation fails** without relentless pressure; **domestic law denies** collective rights; and **gold and timber** pull hard.

*A note on cost: petitioning the Commission, documenting your land, and uniting the community cost little but time and endurance. International legal support is often provided by human-rights organisations. The expenditure that most changes outcomes is not money; it is the patient unity of the community and the sheer persistence to carry a case through years to a ruling — and then years more to force its implementation, which is the hardest investment of all in Suriname.*

### Effectiveness Visualization

SUCCESS PROBABILITY (ruling won, project conditioned or stopped, forest protected)

CONSENT DENIED + DOCUMENTED FOREST + UNITED PEOPLE + INTERNATIONAL SUPPORT:

|                                   |                                      |
|-----------------------------------|--------------------------------------|
| Winning the ruling:               | 40-65%                               |
| All steps to a ruling:            | 40-65%                               |
| Consent + customary + press:      | 35-60%                               |
| All steps THROUGH implementation: | 20-45% <- the real, hard finish line |
| Single step:                      | 5-65%                                |

DOMESTIC ROUTE ALONE -- relying on Surinamese law and courts:

|                            |                                           |
|----------------------------|-------------------------------------------|
| Domestic court:            | 5-20% <- collective rights not recognised |
| Petition + measures alone: | a real opening even without the full case |
| Delay / record:            | modest                                    |
| Single step:               | 5-20%                                     |

**How to read this honestly.** The levers that most change outcomes in Suriname are **the international system and the consent standard**, amplified by customary unity and international concern. Saramaka and Kaliña and Lokono show the ceiling: a people the state would not recognise won, in the highest court of the Americas, the requirement of their consent. But the non-implementation that followed shows the floor and the distinctive danger: **a ruling is not a protected forest until it is enforced**. Most Surinamese fights therefore have two finish lines — the ruling, and the far harder implementation — and the honest lesson is that the international system is a real and distinctive lever for the first, and relentless, sustained pressure the only lever for the second. Read the table, then, with two finish lines in mind. The odds of winning a ruling, for a well-documented case of a consent-less concession over customary land, are genuinely good, because the law is now settled in the community's favour. The odds of turning that ruling into a protected forest are lower and depend almost entirely on endurance — on whether the community and its allies keep the pressure on for the years that compliance takes. A campaign that plans for only the first finish line will win a judgment and lose the forest.

## Step Importance Ranking (When All Combined)

1. **The international human-rights system** — Suriname's most decisive lever; the Commission and Court can bind the state to consent, title, and assessment its own law refuses, as at Saramaka.
2. **Consent (FPIC) as a veto** — the standard that a large project on your land requires your consent, the closest thing to a veto a community here can hold.
3. **Uniting the customary authority** — the granman, the captains, and the community speaking as one, the legitimacy and unity a project must reckon with.
4. **Forcing implementation** — the long, distinctive, decisive struggle to make a won ruling real on the ground, without which the victory is paper.
5. **International concern and the record** — the forest and human-rights attention, and the documentation, that win the ruling, force its enforcement, and outlast a single decision.

## What Surinamese Campaigns Actually Show

A few patterns recur. **The international system can bind the state** — Saramaka and Kaliña and Lokono won consent and title the domestic law denied. **Consent is the veto** — the FPIC standard is the community's strongest hold. **Unity is essential** — a people speaking as one through its customary authority is far harder to divide. **But the ruling is only the start** — non-implementation followed both wins, and the real fight was enforcement. The through-line: **document your land and the missing consent; unite behind your customary authority; take the case to the Inter-American system; win the consent standard; rouse the world; and then fight, for as long as it takes, to make the ruling real — because in Suriname the state will grant the concession, but the international system and a united people can require consent, and only relentless pressure can enforce it.**

## STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point, which in Suriname is often the missing consent. Vague opposition goes nowhere; opposition to "the logging and gold concessions the state granted over our territory without ever seeking our consent, destroying the forest we have held for generations, unassessed and unshared" is a case — the case that won at Saramaka. Answer five questions.

### The Five Core Questions

**1. Was our consent sought and given?** This is the first Surinamese question, because the **free, prior, and informed consent** standard is your strongest lever, and its absence — a concession granted without asking, as at Saramaka — is the core of an international case and functions as a veto.

**2. Whose land is it, and how is it held?** Is it **customary Maroon or indigenous territory**, held for generations, though unrecognised by domestic law? Establishing the traditional occupation and use is the foundation of the property claim.

**3. What does it destroy, and was it assessed?** What does the project do to the **forest, the rivers, the land, and the way of life**, and was any **independent environmental and social impact assessment** done, as the Court requires? The harm and the missing assessment are grounds.

**4. Is the community united behind its authority?** Can the **granman, the captains, and the villages** speak and act as one? Unity is essential, and division is what a company exploits.

**5. Who decides, who benefits, and who is watching?** Which company holds the concession, who granted it, who profits; which people, land, and forest are affected; and which human-rights organisations, the Inter-American system, UN bodies, forest networks, press, and public can be engaged. This maps your levers and your audiences at once.

## A Worked Example

Suppose the state grants logging or gold concessions over Maroon or indigenous territory, without consent, destroying the forest, with no honest impact assessment.

Working the five questions: **was consent sought** — and its absence is the core of the case. **Whose land is it**, and can the traditional occupation be documented? What does it **destroy of the forest and the way of life**, and was it **assessed**? Is the **community united** behind its granman and captains? And the deciders are the state and the company, with the Inter-American system, the international community, the press, and the public as the pressure points.

Within a season you have moved from "we oppose the concession" to a target list: document the customary land and the missing consent; unite the community and its authority; petition the Inter-American Commission; invoke consent; demand assessment and benefit-sharing; rouse international concern; and prepare for the long fight to enforce a win. That is a campaign, not a complaint — and it draws directly on how the Saramaka and the Kaliña and Lokono won. Notice what the exercise did: it converted a diffuse sense of loss into a short list of concrete tasks — document the land and the missing consent, unite the people, petition the Commission, seek measures, rouse the world, prepare for enforcement — each tied to a specific lever and each of which can begin now. That is the difference the five questions make, and in Suriname the first of them, whether your consent was ever sought, is the one that most often decides where the fight is won.

## STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

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Documentation is the foundation everything else stands on. The Inter-American Commission and Court, an international organisation, a journalist, and the world all move on evidence, not indignation — and at Saramaka the documented customary land and the missing consent were what won. Build your file in three layers.

### Layer 1: The Concession and the Consent

Get the documents the decision rests on, and above all **the record of consent, or its absence**. Obtain the **concession itself** — the logging or mining grant, its holder, its terms, its area — and establish, crucially, that **your free, prior, and informed consent was never sought or given**, as at Saramaka, because that absence is the core of an international case. Obtain any **environmental and social assessment** — its absence or inadequacy is a further ground, since the Court requires an independent one. Use what access exists and the support of human-rights organisations. The gap between what the state claims — a lawful concession on state land — and what the customary occupation and the missing consent show is where cases are won.

### Layer 2: The Land and the Forest

Document the reality the state denies, and put the **customary land and the forest** at the centre. Record your people's **traditional occupation and use** — the villages, the gardens, the hunting and fishing grounds, the sacred places, the generations of possession — because this is the foundation of the property claim the domestic law refuses but the Court recognises. Map it with your captains and elders, and with the help of anthropologists and mapping organisations. This customary-land map is the single most important document a Surinamese community can produce, because it is the evidence that turns an oral, lived, generations-deep relationship with the forest into something a court can recognise as property. Done well — with named villages, gardens, hunting and fishing grounds, sacred sites, and the history of their use



— it is far harder for a state to dismiss as vague or recent than a mere assertion of belonging, and it was exactly such evidence of traditional occupation that grounded the property findings at Saramaka and Kaliña and Lokono. Document the **forest, the rivers, and the biodiversity** the project would destroy, and the **harm already done** — the cleared land, the mercury in the water from gold mining. Photograph and date it. Record **testimony** from those who hold the land and its history.

## Layer 3: The Missing Consent, the Harm, and the Denial

Finally, document the violations. Was your **consent never sought**, as the Court requires for a large project on your land? Was there **no independent impact assessment**, and **no benefit-sharing**? Does the domestic system **deny you collective title**, leaving you only a revocable permission? And is the state **failing to implement** what an earlier ruling already required? Each is a separate ground — for the petition to the Commission, the case before the Court, the demand for implementation, and the public campaign — and together they make a case that is hard to wave away. This is the layer that most often decides Surinamese fights, because here a concession sold as lawful is revealed to have been imposed without consent, on customary land the state refuses to title, unassessed and unshared — exactly the case that won at Saramaka and Kaliña and Lokono.

## WHAT TO GATHER, AND WHERE TO FIND IT

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This is the practical companion to Step 2: the specific records that decide Surinamese cases, and where to obtain them. You will not need every item; you will need the few that establish your customary land, the missing consent, and the harm.

### The Concession, the Consent, and the Paper Trail

- **The concession** — the logging or mining grant, its holder, its terms and area, and who signed it.
- **The consent record, or its absence** — proof that your free, prior, and informed consent was never sought or given; the core of an international case.
- **The impact assessment, or its absence** — whether an independent environmental and social assessment was done, as the Court requires.
- **The domestic-law position** — the fact that Surinamese law grants only a revocable permission, not collective title; the gap the international system fills.
- **The proponent** — the company, its owners and record, foreign or domestic.

### How to Get Them

Concession records come through the responsible ministries and what access-to-information exists; the consent and assessment record through the same sources and the community's own knowledge that it was never consulted; the domestic-law position is a matter of record. Much is opaque, so lean on **allies**: the human-rights and indigenous-rights organisations that support Inter-American cases, forest and mapping organisations, sympathetic lawyers, and international networks. Move early: petitioning the Commission and asserting consent before or as the concession proceeds, and requesting **precautionary measures** to suspend the harm, carry more weight than the same steps taken after the forest is cleared — and the international process, though slow, has its own steps and deadlines.

### The Ground Evidence

- **The customary-land map** — your people's traditional occupation and use, villages, gardens, hunting and fishing grounds, sacred places, generations of possession, mapped with your captains and elders.
- **The forest and biodiversity** — what the project would destroy, from ecologists and forest organisations.
- **The harm evidence** — cleared land, polluted rivers, mercury from gold mining, dated and photographed.
- **The way-of-life evidence** — how the land sustains the community, from testimony and study.
- **Testimony** — from the granman, the captains, the elders, and those who hold the land.

### Organise It So It Persuades

Keep a **master timeline** of the concession, the missing consultation, and every step of the international process — the spine of any petition or compliance filing. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets an elder, a captain, a lawyer, a journalist, a Commission official, and a judge all see the same clear picture fast, and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the state

disputes it. In a country where the international system can require the consent the state denies, the community with the better-kept file — above all the clearest evidence of customary occupation, the missing consent, and the harm to the forest — is very often the one that wins the ruling and, later, forces its enforcement.

## STEP 3: BUILDING LOCAL OPPOSITION — HOW TO UNITE THE COMMUNITY AND ITS AUTHORITY

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Evidence and law do not stop projects on their own. United people do — and in Suriname, the unity of the community behind its customary authority is the foundation of every win. The Saramaka and the Kaliña and Lokono prevailed because they acted as a people, through their granman and captains, with one voice before the international system. A Surinamese campaign's strength is that unity, and its endurance through a fight measured in years.

### Phase 1: The Core and the Authority

Start with a committed core working **with and through the customary authority** — the granman, the captains, the village councils — because in Maroon and indigenous communities legitimacy flows through them, and a campaign that bypasses them fractures. This is not a formality to be observed and set aside; it is the source of the community's standing and unity, and a foreign lawyer or an outside organisation that deals over the heads of the granman and captains, however well-meaning, risks both offending the authority the case depends on and handing the state or the company an opening to say the community is divided. The campaign's legitimacy, in the community and before the Court, rests on its being genuinely the people's own, spoken for by the people's own leaders. Assign roles: the customary authority and community liaison, documentation and mapping, legal and international liaison, media, and coordination across villages. Agree on the goal — consent required, the concession stopped or conditioned, the land titled, the forest protected — and on what the community will and will not accept.

### Phase 2: The United People and Their Allies

Then widen deliberately, first to the **whole affected people** — every village and clan within the territory, so the community speaks as one — and then to allies. Bring in the **other Maroon and indigenous peoples**, whose fights are the same and whose solidarity is strength; the **human-rights and indigenous-rights organisations** that support Inter-American cases; the **forest, conservation, and mapping organisations**; sympathetic **lawyers and anthropologists**; and the **international networks and UN bodies** that watch indigenous rights. The Saramaka and the Kaliña and Lokono drew their power from a united people backed by exactly this international support, which is precisely the spread a winning Surinamese campaign needs. It is worth naming the pieces, because each does something the others cannot: the united people and its customary authority supply the standing, the legitimacy, and the testimony; the anthropologists and mapping organisations turn generations of occupation into evidence a court can weigh; the human-rights organisations know the Inter-American process and can carry the case, often without charge; the forest and conservation movement links the fight to the world's concern for the rainforest; and the other Maroon and indigenous peoples make it clear that this is not one village's grievance but a shared struggle for the same right.

**A worked coalition example.** Facing consent-less concessions on customary forest, the villages unite behind the granman and captains as the base; the anthropologists and mapping organisations document the traditional land; the human-rights organisations carry the case to the Inter-American system; the forest and international networks rouse global concern; and the other peoples stand in solidarity. No single group could have carried it; together they cover the land, the law, the forest, and the world — the model that won at Saramaka.

### Phase 3: Sustaining It Through the Years

Campaigns die of burnout, not defeat — and a Surinamese fight is measured in years, through the slow international process and the harder struggle for implementation. Meet on a rhythm across the villages. Give people concrete, finishable tasks. Mark small wins — the petition filed, the case admitted, the measures granted, a ruling won, a step of implementation forced. Keep the customary authority at the centre, and the community united, since a Surinamese campaign's power is its unity through the generations-long timescale, and division — the company's payments to some villages or captains, the promise of gold-mining income — is what breaks a people. Guard that unity above all.

### Phase 4: Showing Strength and Speaking as One

Numbers and legitimacy must be seen. Let the **granman and the captains** speak for the people, so the state, the Court,



and the world hear a united nation within a nation, not a faction. Turn the community out for the documentation, the hearings, and peaceful, dignified assertions of presence on the land. And carry the united voice to the international stage, where the community's own authority and testimony are powerful, as the Saramaka's and the Kaliña and Lokono's were. The point is not spectacle; it is to demonstrate — to the state, the Inter-American system, and the world — that the people stand as one for their land and their consent, as they demonstrated until the Court ruled, and as they must keep demonstrating until the ruling is enforced.

## STEP 4: LEGAL CHALLENGES — THE INTER-AMERICAN SYSTEM, CONSENT, AND ENFORCEMENT

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Surinamese domestic law offers little — it does not even recognise your collective land rights — but the **Inter-American human-rights system** is a powerful lever, and it delivered Suriname's landmark wins. You do not need a domestic victory to prevail: petitioning the Commission, seeking precautionary measures, winning a Court ruling, and then forcing its implementation halts or conditions a project and binds the state to consent, as at Saramaka and Kaliña and Lokono. Engage human-rights lawyers and organisations early — but understand the path.

### The Inter-American Commission and Court

The first and most decisive lever is the **Inter-American system**. Having exhausted what little domestic remedy exists, a people can **petition the Inter-American Commission on Human Rights**, which can seek **precautionary measures** to suspend the harm, examine the case, and refer it to the **Inter-American Court of Human Rights**. The Court can find Suriname in violation of the **American Convention** — the rights to property and to juridical personality — and order it to recognise and **title** the land, to obtain **consent**, to conduct **impact assessments**, and to **share benefits**, as it ordered at Saramaka and Kaliña and Lokono. This is Suriname's signature lever, binding the state to standards its own law refuses.

### Consent as a Veto

The second lever, distinctively powerful, is **free, prior, and informed consent**. The Court held that for a large project on your land, the state must obtain your **consent** — not merely consult you — which functions as a **veto** over logging, mining, and development that would gravely affect your territory. Assert it, document its absence, and hold the state to it. It is the closest thing to a veto a community here can wield. It is worth being precise about its scope, because the state will try to narrow it: the Court set the highest bar — consent, not merely consultation — for large-scale projects that would have a major impact on the territory and threaten the people's survival on it, while requiring at least effective, good-faith consultation for lesser interventions. A campaign should therefore establish the scale and gravity of the harm clearly, because it is the magnitude of the threat that lifts the standard from consultation, which a state can perform and ignore, to consent, which it cannot override.

### The Domestic Courts

The third lever is the **domestic courts** — but they are weak here, because Surinamese law **does not recognise collective land rights**, granting only a revocable permission to use the land. Treat a domestic challenge as, at best, a step to exhaust before the international system, or a means of delay and record, rarely a decisive blow on its own.

### Enforcement: The Second, Harder Battle

Finally, and distinctively in Suriname, the **enforcement of a ruling**. The Court **supervises compliance** with its judgments, but the state must actually comply — and Suriname's compliance has been poor, with concessions granted and no land-rights law passed years after Saramaka. So the legal fight does not end at the ruling: file **compliance submissions** to the Court, press for the **domestic land-rights law** the ruling requires, demand that each new concession honour the consent standard, and keep the non-compliance before the Court and the world. Winning the judgment is half the battle; enforcing it is the other, harder half. The compliance phase is unglamorous and slow, and it is where many victories quietly wither: the state files partial reports, promises a land-rights law that never passes, and grants new concessions in the meantime, hoping the community and the world lose interest. The remedy is persistence — keeping the case alive before the Court through regular compliance submissions, keeping the non-compliance in the press, and treating each new consent-less concession not as a fresh defeat but as fresh evidence of the state's continuing breach.

### Where to Turn and With Whom

Petitions go to the **Inter-American Commission**, and cases to the **Court**; compliance is pursued before the **Court** and through international pressure; domestic steps, weakly, through the local courts. Get help early: the human-rights and indigenous-rights organisations that specialise in Inter-American cases, and Suriname's and the region's rights lawyers, know the process, the consent standard, the compliance mechanism, and the strongest ground, and often provide support without cost. Help engaged early, before the forest is cleared, is worth far more than help sought after — and in Suriname, the strongest strategy marries the **Inter-American case** to the relentless **pursuit of enforcement**.

## TURNING YOUR EVIDENCE INTO ARGUMENTS

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You have a file of evidence. Now you must turn it into arguments — because the same fact persuades the Inter-American system, an international organisation, a journalist, the public, and the state in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

### One Fact, Many Arguments

Take a single documented fact — say, that the state granted a gold concession over Maroon territory held for centuries, without ever seeking the people's consent, and with no independent impact assessment. That one fact becomes:

- **An Inter-American argument:** the state violated the rights to property and juridical personality and the consent standard of the American Convention — the case that won at Saramaka.
- **A consent argument:** a large project on our land requires our consent, which was never sought — the veto asserted.
- **A forest-and-rights argument (to the world):** they are destroying a centuries-old people's rainforest without their consent — the case that rouses international concern.
- **An assessment argument:** no independent environmental and social assessment was done, as the Court requires — a further ground.
- **An enforcement argument:** the state is repeating exactly what an earlier ruling forbade — the case for compliance.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Suriname the arguments that most often decide things are the **consent** one, because it is the veto, and the **customary-land-and-forest** one, because it wins the ruling and the world. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the record and a claim made to the Court can be proven by your map and your elders; consistency across audiences is itself persuasive.

### Match the Argument to the Audience

**The Inter-American system** wants the violation framed precisely against the Convention and its own precedents — the missing consent, the unrecognised title, the absent assessment — with the customary-land evidence and the timeline that prove it.

**International organisations and the world** respond to the threat to a centuries-old people and a globally valued rainforest, and to the denial of consent.

**Journalists** need a specific, verified, human story with a hook: a named people, their forest, a concession imposed without asking, and the David-and-Goliath of a community against the state and a mining company.

**The public**, at home and abroad, needs the argument simple and true: they took our forest without asking, and a great court has said they cannot.

**The community itself** needs to see the fight is winnable and just, so it holds together through the years to the ruling and beyond, to enforcement.

## STEP 5: MEDIA STRATEGY — HOW COVERAGE SHIFTS OUTCOMES

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Media is not vanity; it is a lever. Coverage raises the cost of a project, reaches the international community and the Court's audience, and — crucially in Suriname — helps force the implementation a ruling alone does not. The Saramaka and Kaliña and Lokono cases drew international attention that both won the rulings and kept the state's non-compliance visible.

## Build the Story

Reporters and the public need specifics: a named people and land, a documented threat, and a clear injustice. "A project threatens the environment" is not a story; "the state sold a gold concession over a Maroon people's centuries-old rainforest without ever asking them, and years after a great court ordered it to stop, it is still doing so" is. Lead with your strongest verified facts — the missing consent, the customary land, the forest — and offer a human voice: a granman, a captain, an elder. In Suriname the story of a centuries-old forest people denied consent over their own land is uniquely powerful. It carries an unusual moral clarity that reporters and audiences respond to: not a dispute between competing land uses, but a people who have lived in and from a forest for generations, told by their own government that they may be removed from it for a concession they were never asked about — and vindicated, against that government, by an international court. Told plainly, with the granman's own words and the map of the people's land, it needs no exaggeration to move those who hear it.

## Reach the Right Outlets

Work outward in rings. **Community and national voices** first. Then, crucially, the **international ring** — the global press, the human-rights and forest organisations, the indigenous-rights networks, and the world's concern for the rainforest — which brings the pressure that wins a ruling and forces its enforcement, and reaches beyond a state that denies you at home. Feed each ring what it needs, and let coverage in one pull in the next. The **international ring is especially decisive** in Suriname, because the international system and the world's attention are where the power lies, not in the domestic state. The rainforest gives a Surinamese campaign a reach few others have: a story about the destruction of a globally significant forest, and about a centuries-old people denied consent over it, speaks at once to the human-rights world, the environmental world, and the climate world, each of which can bring its own pressure to bear. A community that frames its fight as the defence of both a people and a forest addresses a far larger and more powerful audience than one that speaks of the people alone.

## Sustain It, and Keep It True

A single article changes little; a drumbeat changes decisions — and in Suriname, the drumbeat must last through the ruling and long into the enforcement fight. Plan a sequence — the missing consent, the customary land, the harm, the ruling, the non-compliance — so there is always a next hook, and build your own clear record so the story reaches the world and endures. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the state can cost credibility with the Court and the international community. Verified, specific, consent-and-forest-centred, and relentless — that is the coverage that shifts outcomes here, and that helped win the rulings and keep the non-compliance in the world's eye.

## EMAILS & LETTERS

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Written communications are how you object, demand, create a record, and reach the bodies that can act — above all the international system, which lies beyond the domestic state's denial. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the missing consent, the customary land, and the forest.

### 8A. Petition / Submission to the Inter-American Commission

**To:** the Inter-American Commission on Human Rights **Subject:** Petition — [people] v. Suriname, concession [reference] granted without consent

We, the [people], represented by our [granman / captains] and [counsel], submit that Suriname has violated our rights to property and juridical personality under the American Convention by granting [logging / mining] concession(s) over our traditional territory **without our free, prior, and informed consent**, without recognising our collective title, and without independent impact assessment. We attach our customary-land evidence and the record of the concession. We request that the Commission examine the case, seek **precautionary measures to suspend the harm**, and refer it to the Court, as in Saramaka and Kaliña and Lokono.

### 8B. Request for Precautionary Measures

**To:** the Inter-American Commission on Human Rights **Subject:** Request for precautionary measures — imminent harm to

[people]'s territory

We request precautionary measures to **suspend** [logging / mining] under concession [reference] on our territory, which threatens irreparable harm to our forest, rivers, and way of life, and proceeds without our consent. We attach evidence of the imminent harm. We ask that the works be suspended pending examination of our petition.

## 8C. Demand to the State / Ministry

**To:** the relevant ministry / the government of Suriname **Subject:** Withdraw concession [reference] on [people]'s territory — our consent was never sought

We, the [people], demand that concession [reference] on our traditional territory be **withdrawn**. It was granted without our free, prior, and informed consent, over land we have held for generations, without impact assessment or benefit-sharing, contrary to the rulings of the Inter-American Court in Saramaka and Kaliña and Lokono. We attach our evidence, and we require that our consent be obtained, as the Court requires.

## 8D. Compliance Submission (Enforcing a Ruling)

**To:** the Inter-American Court of Human Rights (compliance supervision) **Subject:** Non-compliance — [people] / Suriname, Judgment [reference]

We submit that Suriname has failed to comply with the Judgment in [case]: it has [granted new concessions without consent / failed to title our land / passed no collective-land-rights law / conducted no assessment]. We attach the evidence. We request that the Court find continuing non-compliance and require the State to implement the Judgment in full.

## 8E. Letter to the Company / Concession-Holder

**To:** [the logging / mining company] **Subject:** Your concession [reference] lacks our consent and violates our rights

We write regarding your concession over the traditional territory of the [people]. It was granted without our **free, prior, and informed consent**, contrary to the rulings of the Inter-American Court against Suriname, and it destroys [our forest and way of life]. We put you on notice of the legal and reputational risk, and we ask you to **cease operations** and to deal only with our recognised customary authority.

## 8F. Letter to an International Organisation / UN Body

**To:** [human-rights / indigenous-rights / forest organisation or UN body] **Subject:** [People] of Suriname — consent denied, ruling unenforced

We are the [people] of Suriname, whose territory is threatened by [concessions] granted without our consent, in violation of the Inter-American Court's rulings that Suriname has not implemented. We ask for your support in pressing the state to obtain our consent, recognise our land, and comply with the Court, and in bringing international attention to our forest and our rights. We attach our evidence.

## 8G. Email to a Reporter (National or International)

**To:** [journalist] **Subject:** Story tip: [specific finding] — [the people / the forest]

I follow your coverage of [beat]. We have something the world should know, with a clear hook: [documents and customary-land evidence] show [quantified finding — e.g. "the state sold a gold concession over a Maroon people's centuries-old rainforest without their consent, years after a great court forbade exactly this"]. It echoes how the Saramaka won. I can share the full file and connect you with a granman and an elder. Could we talk this week?

## 8H. Public Statement / Solidarity Appeal

**To:** the public and other peoples **Subject:** Stand with the [people] for our forest and our consent

We, the [people] of Suriname, call on all peoples and all who value the forest to stand with us against [project], imposed on our land without our consent, in defiance of the rulings that recognised our right to it. Our consent is required; our forest is ours; and we will defend both, as the Saramaka and the Kaliña and Lokono did before us.

## Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — the record of a petition, a request for measures, or a compliance submission is itself evidence, and exactly what the Inter-American system and the international community will heed. Keep them factual, specific, and grounded in the missing consent, the customary land, and the forest; attach your evidence; and route them, where you can, through the customary authority, the human-rights and forest organisations, your lawyers, and the international press. The reply, or the decision, becomes part of your record, and in Suriname that record feeds the levers that matter most: the Inter-American case, the consent standard, and the enforcement of the win.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

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Not everyone can run a long campaign — and a Surinamese fight is long by nature. But with a few hours a week you can still set the decisive levers in motion. In rough order of impact for the effort:

- 1. Establish that consent was never sought.** In Suriname, the missing consent is the core of the case. Confirm and document that your free, prior, and informed consent was never obtained (Step 1, Step 2).
- 2. Unite behind your customary authority.** Get the granman, the captains, and the villages speaking as one, because a united people is the foundation of every win (Step 3).
- 3. Reach the human-rights organisations.** The organisations that support Inter-American cases (8F) can carry your petition and often provide legal help without cost.
- 4. Petition the Commission and seek measures.** File to the Inter-American Commission (8A) and request precautionary measures to suspend the harm (8B).
- 5. Document your customary land.** Map your traditional occupation and use (Step 2) — the foundation of the property claim.
- 6. Rouse international concern.** A forest-and-rights story (8G) reaches the world whose pressure wins and enforces rulings.
- 7. If a ruling already exists, demand its enforcement.** File a compliance submission (8D) and press the state and the Court.

Do only the first three and you will have established the missing consent, united the people, and reached the allies who can carry the case — the exact foundation on which the Saramaka won. Then come back and read the rest. Even the shortest version has a spine: establish the missing consent, unite behind your authority, reach the human-rights organisations. Those three moves are exactly the ones that, done early, put the decisive Surinamese levers into play — the violation on which the whole international case rests, the unity that gives the community standing and endurance, and the allies who can carry a petition through the years to a ruling — and they are within reach of a community that has decided to act, long before any lawyer or court is involved.

## WHEN THE SYSTEM IS TILTED

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Suriname's system is tilted against forest peoples in a specific and severe way, and you must understand it, so you neither waste effort on the domestic state nor miss the levers that still work.

### Where the Tilt Shows

The tilt here is structural and distinctive. The **domestic law does not recognise your collective land rights** at all — you hold only a permission the state may revoke — so the courts and the ministries are, by design, not your allies. The **state grants concessions over your land** as if it were empty, driven by the **pull of gold and timber** on which it depends. **Enforcement is weak** in a vast, remote forested interior. And most distinctively, even a **won ruling goes unimplemented** — the state may simply not comply, as it did not for years after Saramaka. Where these tilts bite — which is throughout the domestic system — a lever aimed at the state gives little. The answer is to aim at the international system and to fight, relentlessly, for enforcement.

### What Still Works — And Some Is Distinctive

The decisive point is that even against this tilt, real and distinctive levers remain — precisely because they lie outside the domestic system.

**The international system still binds the state.** The Inter-American Commission and Court can require consent, title, and assessment the domestic law refuses, as at Saramaka and Kaliña and Lokono.

**Consent is still the veto.** The FPIC standard is a hold the domestic state cannot erase, once the Court has affirmed it.

**Customary authority still unites.** A people speaking as one through its granman and captains is a legitimacy no concession can override.

**The world still watches the forest.** International concern for a globally valued rainforest and its peoples is a pressure the state feels.

**The ruling still stands to be enforced.** A won judgment, though unimplemented, is a permanent claim and a lever that pressure can, over time, make real.

This is a genuinely important point in a system built to outlast opposition: a ruling does not expire, and the state's obligation to comply does not lapse because it has been ignored for a decade. Each year of non-compliance is not the slow death of the victory but the accumulation of a record of breach that a persistent community can press, before the Court and the world, until the political cost of continued defiance outweighs the profit of the concessions. The judgment is a claim that waits, and patience is itself a weapon.

## The Honest Frame

So the honest frame for Suriname is unusual and demanding: the domestic system is built to deny you, and even a great victory is only half-won until it is enforced — but the international system and a united people can win the consent standard, and relentless pressure can, in time, make it real. So diagnose your fight honestly: establish the **missing consent**; unite behind your **customary authority**; take the case to the **Inter-American system**; win the **consent standard**; rouse the **world**; and then commit, for the long haul, to the **enforcement** without which the ruling is paper. Do not spend your strength on the domestic courts that deny your rights; spend it on the international system that can affirm them, and on the compliance fight that makes them real.

## WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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In Suriname, the granting of concessions over forest peoples' land is entwined with weak governance, powerful extractive interests, and, often, corruption, so this section matters. When a concession is granted not on any honest assessment of need or right but through connected interests and the lure of gold and timber revenue, your strategy shifts toward exposing the capture and going around it through the international system.

### How to Tell

Look for the signatures of capture. A **concession granted quietly** over customary land, without consent or assessment; a **company connected** to officials or granted terms suspiciously favourable; the **revenue from gold and timber** driving decisions against communities' rights; a pattern of **concessions repeated** despite rulings against them; and **impact assessments skipped or faked**. Trace the concession and the money: who holds it, who granted it, who profits. In Suriname, a concession imposed on forest peoples without consent is often a matter of extractive interests overriding rights that the state, dependent on that extraction, chooses not to defend.

### Who Can Be Captured — and Who Is Harder

Be clear-eyed about where capture reaches. **The ministries that grant concessions, parts of the state, and the domestic legal system** that denies your rights are, in effect, aligned against you. But some forces are far harder to capture, and they are your targets: the **Inter-American Commission and Court**, beyond the reach of Surinamese politics; the **UN and international human-rights and indigenous-rights bodies**; the **international forest and conservation movement**; the **independent experts** — anthropologists, ecologists; and the **united community and its customary authority**, which no concession can legitimately override. Capture thrives in the domestic system; your task is to lift the matter outside it — to the international system, the world, and the people's own authority. This is why exposure works so differently here than in a country with functioning domestic institutions: you are not appealing to a



captured system to reform itself, but documenting its capture as further evidence for an international system that stands outside it. The corruption and the missing consent, shown together, do not merely embarrass the state at home; they strengthen the case that the community had no fair recourse within Suriname and rightly turned to the Inter-American system — which is itself part of what that system asks before it acts.

## What to Do

Do not rely on the captured domestic system. Instead, **document the concession and the missing consent precisely** — who granted it, who holds it, who profits, and how your rights were ignored — and take it, with the harm to the forest, to the forces beyond the capture: the **Inter-American system**; the **UN and international rights bodies**; the **forest and human-rights movement and the press**; and the **united community**. Pair the exposure with the consent claim and the customary-land evidence, so the impropriety and the violation surface together. In Suriname, exposing how extractive interests override forest peoples' rights is not a side-argument; it is often the heart of the case, because a concession revealed as extraction imposed without consent on a people's forest loses its legitimacy before the Court and the world — as the Saramaka and the Kaliña and Lokono proved.

## INTEGRATION & TIMELINE

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The five steps win when they run together, over years. Here is how they fit across the life of a fight — which in Suriname turns on the international system, the consent standard, and the long fight for enforcement.

### Early (Months 0-12): Consent, Unity, and the Petition

Pin down the concession and, above all, **whether your consent was sought** (Step 1), and document your **customary land and the harm** (Step 2). Unite the community **behind its customary authority** (Step 3). Move on what is decisive: reach the **human-rights organisations** (8F); **petition the Inter-American Commission** and **seek precautionary measures** to suspend the harm (8A, 8B); and **demand withdrawal** from the state (8C). Begin to **rouse international concern** (8G). This phase lays the foundation, and in Suriname the petition and the unity begun here are what ultimately win.

### Middle (Years 1-5): The Case and the Ruling

Sustain the united community through the slow process (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Advance the case from the **Commission to the Court** (Step 4), pressing the consent, title, and assessment claims. Reach the **companies and international bodies** (8E, 8F). Build the media drumbeat from national to international (Step 5). Each front feeds the others. Do the time-critical things first — the request for measures while the harm is imminent — because those chances do not return. A forest cleared or a river poisoned cannot be restored by a later ruling, so the precautionary-measures request, aimed at suspending the works before the irreparable harm is done, is often the most urgent single act in the early life of a case; even where it is not granted, the attempt puts the imminence of the harm on the record and signals to the state and the world that the community is acting in earnest.

### Later (Years 3-15+): The Ruling, and Enforcing It

Win the ruling — consent, title, assessment, benefit-sharing ordered — and then face Suriname's distinctive, decisive phase: **enforcement**. Do not disband. File **compliance submissions** to the Court (8D); press for the **domestic land-rights law** the ruling requires; demand that **every new concession** honour the consent standard; and keep the **non-compliance before the Court and the world**. Judge success honestly. Sometimes it is a ruling won and, in time, a land-rights law and a protected forest. Sometimes it is a ruling won but long unenforced, held open by relentless pressure. Both are the fight, and in Suriname the second phase is as important as the first. And even a ruling long unenforced is not nothing: it establishes, permanently and at the highest level, that the concessions are unlawful and the consent is owed, which changes the terms of every future negotiation, deters some financiers and buyers wary of a documented rights violation, and hands the next generation of the community a claim already won in law and needing only to be enforced.

## The Shape of a Campaign

|             |                                                                                                                  |
|-------------|------------------------------------------------------------------------------------------------------------------|
| MONTHS 0-12 | Establish missing consent   Unite behind authority   Reach rights orgs   Petition the Commission + seek measures |
| YEARS 1-5   | Sustain unity   Arguments   Commission -> Court   Companies + international   Media                              |
| YEARS 3-15+ | Win the ruling   ENFORCE it: compliance filings, the land law, each concession   Keep non-compliance visible     |

# FINAL ASSESSMENT

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Suriname gives communities a genuinely powerful — and, because the domestic system denies them, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. The **Inter-American human-rights system** can bind the state to recognise land, obtain consent, assess impacts, and share benefits its own law refuses, as it bound Suriname at Saramaka and Kaliña and Lokono. **Free, prior, and informed consent** functions as a veto over projects on your land. **Customary authority** unites a people and carries a legitimacy no concession can override. The **rainforest's global value** draws the world's concern. And the **impact-assessment and benefit-sharing** standards are demands you can hold the state to. These are the levers that let peoples the state would not even recognise win, in the highest court of the Americas, the requirement of their consent.

The limits are just as real, and this guide names them because in Suriname they are central. The process is **slow**, measured in years. **Domestic law denies** collective rights, so the local courts rarely help. The **pull of gold and timber** is strong, and the state dependent on it. And, most of all, **a won ruling goes unenforced** without relentless pressure — the fight does not end at the Court. No guide should pretend these away; in Suriname, the art is to win through the international system and then to make the win real.

So the realistic promise is this: **establish the missing consent; unite behind your customary authority; take the case to the Inter-American system; win the consent standard; rouse the world; and fight, for as long as it takes, to enforce the ruling — running all of it together.** Do that, and against a consent-less concession over documented customary forest, you can win the ruling and, in time, the protection, as the Saramaka and the Kaliña and Lokono began to; against the slow tilt of a denying state, you can hold the claim open and force it, step by step, toward reality. Do it as those peoples did — a united nation within a nation, speaking through its granman and captains, that took a state which would not recognise it to the highest court of the Americas and won the requirement of its consent.

A last word on the two finish lines. Suriname's lesson is that when your own state denies you land rights entirely, the international system can affirm them — but that the affirmation is only paper until relentless pressure makes it real, so a Surinamese victory is won twice, once at the Court and once, harder, in its enforcement. The state counts on your exhaustion, on the years the process takes, on the pull of gold, and on the belief that a distant court's ruling changes nothing on the ground. Its advantage is its denial of your rights and its control of the concession. That denial and that control are real, and they mean the ordinary domestic routes a community elsewhere might rely on are simply closed to you — there is no friendly ministry, no domestic title, no local court that recognises your land. But denial at home is not denial everywhere, and a right the Surinamese state refuses to write into its law has already been written into the judgments of the highest court of the Americas, where it binds that state whether it likes it or not. Yours is an international system that binds it to consent, a customary authority no concession can override, a forest the world treasures, and the proven fact that peoples it refused to recognise have already beaten it in the highest court of the hemisphere. Play to that. Keep the map and the record, keep the missing consent and the forest at the centre, keep the community united behind its authority, win the ruling, and then treat every compliance filing, every demand for the land law, and every insistence on consent as a brick in a wall no concession can climb — until the judgment is not paper but a titled, protected forest.

The tools are here, and Suriname itself proved them: forest peoples the state would not recognise took it to the Inter-American Court and won the requirement of their free, prior, and informed consent over their own land. What decides the outcome, in the end, is method, unity, and endurance through two finish lines — the ruling, and its enforcement — and those you supply. The endurance is the rarest of the three and the most decisive, because the state's whole strategy after a loss is to wait, and a community that can outlast a government's patience — keeping its unity, its record, and its pressure alive across the years — is one that eventually collects on the judgment it won. Method and unity get you the ruling; endurance gets you the forest. Begin today, begin with the missing consent, your land, and your authority, and build from there. Communities before you have won, in the highest court of the Americas, what their own state denied them — the recognition of their land and the requirement of their consent. What was won by the Saramaka and the Kaliña and Lokono can be won again, and, with relentless pressure, made real. So can yours.